

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



April 17, 2019

The Honorable Linda L. Lofthus
Judge of the Superior Court
County of San Joaquin
180 E. Weber Avenue
Stockton, CA 95202

Re: Richard Allen Butler, Jr.
CDCR No: J59632
Case No: SC057659
Date of Sentence: May 8, 1995

Dear Honorable Linda L. Lofthus:

The purpose of this letter is to provide the court with the authority to resentence inmate Richard Butler, Jr., pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Butler was originally committed from San Joaquin County, for the commitment offense of PC 187 Murder 1st Degree with an enhancement for PC 12022 (b) Use of a Weapon and PC 459 Burglary 1st Degree with an enhancement for PC 12022.5 (a) Use of a Firearm. Butler received an additional conviction for an in-custody offense that occurred on May 5, 2003, at California State Prison, Sacramento. Butler was convicted of PC 245 (a)(1) Assault with a Deadly Weapon Likely to Produce Great Bodily Injury in Sacramento County, in Case Number 04F10479. This conviction resulted in an additional term of 25 years to Life, ordered to run consecutive to his original commitment offense.

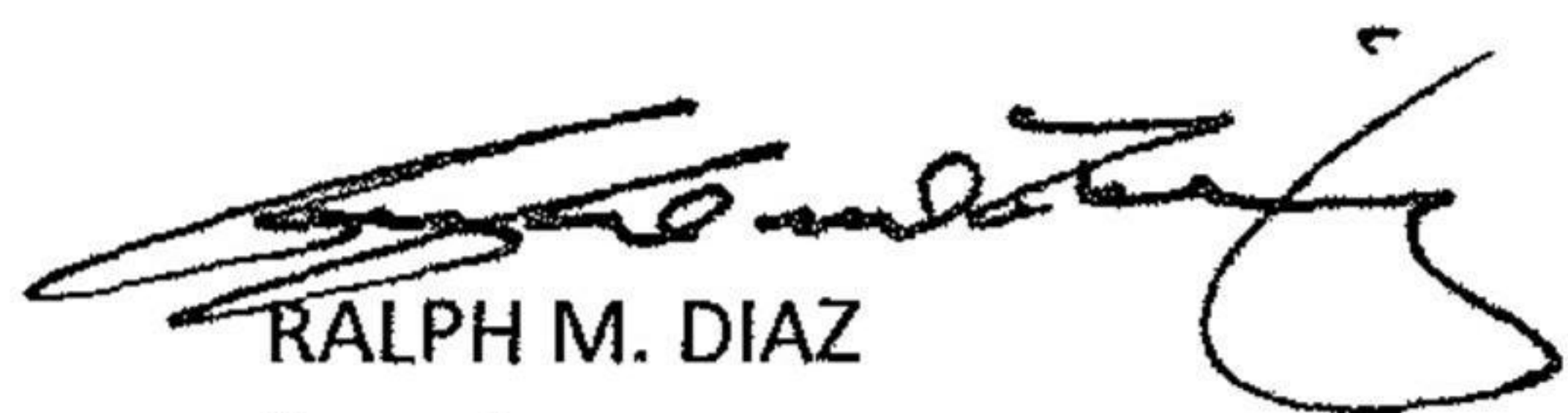
Since the start of his incarceration on May 12, 1995, inmate Butler has received 15 Rules Violation Reports (RVRs). Although Butler has a significant disciplinary history, he has only received one Administrative RVR since seeking safe housing options in July of 2006.

Inmate Butler has taken full advantage of opportunities to successfully transition back into society. He has received multiple Laudatory Chrono's, multiple Vocational Certificates, has earned his General Educational Development Certificate, and has attended

Voluntary Correspondence College. Butler has also been participating in various Self-Help Programs and Inmate Leisure Time Activity Groups such as Parenting/Family Support, Celebrate Recovery Inside (CRI), Men's Fraternity Prison Fellowship, Reentry-Turning Point, Music Class, Art/Painting Class, Buddhist Pathways, the Jewish Enrichment Program, Offender Corrections Lifeskills, Substance Abuse, Anger Management, Houses of Healing, and Conflict Resolution. Butler is also known for being a prior Facilitator of CRI.

Having reviewed the enclosed documentation it appears that inmate Butler's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in black ink, appearing to read "Ralph M. Diaz", with a large, stylized flourish at the end.

RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Rosa Junqueiro, County Court Executive Officer
San Joaquin County District Attorney's Office
San Joaquin County Public Defender's Office